

Court No. - 21

Case :- WRIT - C No. - 7843 of 2012

Petitioner :- Surjeet Singh

Respondent :- State Of U.P. Thru Secy. And Another

Petitioner Counsel :- Nipun Singh

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the respondent no. 1 and Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent no. 2.

By this writ petition the petitioner has prayed for quashing the order dated 18.8.2011 passed by the Executive Engineer-respondent no. 2 by which petitioner's application praying for electric connection has been rejected on the ground that no objection certificate has not been granted by the landlord.

Learned counsel for the petitioner submits that the petitioner was never asked to give any bond or any other security. Under the provisions of U.P. Electricity Supply Code, 2005 in the absence of no objection certificate from the landlord in 4.4, the respondent can supply the energy by taking the indemnity bond.

In view of the aforesaid, we are of the view that the respondent may intimate the petitioner about necessary requirement for supply of the electricity including the requirement of indemnity bond as contemplated under the Electricity Supply Code. The petitioner's application after completing the necessary formality shall be considered afresh for the supply of electricity connection expeditiously preferably within a period of three months from the date of production of certified copy of this order.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 10.2.2012

Atul kr. sri.

Court No. - 37

Civil Misc. Recall Application No. 75750 of 2012

In

Case :- WRIT - C No. - 7843 of 2012

Petitioner :- Surjeet Singh

Respondent :- State Of U.P. Thru Secy. And Another

Petitioner Counsel :- Nipun Singh

Respondent Counsel :- C.S.C.,B. Yusuf,Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

This is an application praying for recall of the order dated 10th February, 2012.

Learned counsel for the applicant submits that applicant has purchased the shop in question and applicant nos. 1, 2 and 3 are landlady and applicant no. 4 is landlord of the shop in question.

This Court dispose of the writ petition on 10th February, 2012 by following order:-

"Heard learned counsel for the petitioner, learned Standing Counsel appearing for the respondent no. 1 and Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent no. 2.

By this writ petition the petitioner has prayed for quashing the order dated 18.8.2011 passed by the Executive Engineer-respondent no. 2 by which petitioner's application praying for electric connection has been rejected on the ground that no objection certificate has not been granted by the landlord. Learned counsel for the petitioner submits that the petitioner was never asked to give any bond or any other security. Under the provisions of U.P. Electricity Supply Code, 2005 in the absence of no objection certificate from the landlord in 4.4, the respondent can supply the energy by taking the indemnity bond.

In view of the aforesaid, we are of the view that the respondent may intimate the petitioner about necessary requirement for supply of the electricity including the requirement of indemnity bond as contemplated under the Electricity Supply Code. The petitioner's application after completing the necessary formality shall be considered afresh for the supply of electricity connection expeditiously preferably within a period of three months from the date of production of certified copy of this order.

With the aforesaid observations, the writ petition is disposed of."

The petitioner had come in the writ petition with the case that no objection has not been granted by the landlord.

Learned counsel for the applicant has referred to the order of Judge, Small Cause Court dated 7th January, 2012 which has already been filed by petitioner as Annexure no. 7 to the writ petition.

The application of the petitioner praying for giving electric connection was rejected by Judge, Small Cause Court with the observation that such dispute cannot be taken as cognizance by Judge, Small Cause Court.

This Court had only directed that the petitioner's application after completing the necessary formality shall be considered afresh for supply of electric connection.

Learned counsel for the applicant submitted that electric connection has now been granted in favour of the petitioner.

We do not find any good ground to recall the order. Applicant if aggrieved by grant of electric connection may take such proceedings as permissible in law.

The application is disposed of.

Order Date :- 20.7.2012
S.Prakash